

20CV03042 Montecristo #1 Living Trust UTD 9/24/2015 et al vs Laura Jean Nary et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-03

Motion: Motion: Enforce re Settlement

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/20cv03042-1>

Source SHA-256: 680aa3e94aa9ef2de82f50424ba601442d54e83f66287601f0a9a99b11d890e3

Tentative Ruling: Montecristo #1 Living Trust UTD 9/24/2015 et al vs Laura Jean Nary et al

Case Number

20CV03042

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/03/2026 - 10:00

Nature of Proceedings

Motion: Enforce re Settlement

Tentative Ruling

Montecristo #1 Living Trust etc., et al., v. Laura Jean Nary, et al.

Case No. 20CV03042

Hearing Date: August 3, 2026

HEARING: Defendants' Motion for Enforcement of Settlement Agreement and Entry of Judgment Pursuant to Code of Civil Procedure Section 664.6

ATTORNEYS: For Plaintiffs and Cross-Defendants Montecristo #1 Living Trust UTD 9/24/2015 and Montecristo #2 Living Trust UTD 9/24/2015 and Cross-Defendants Hugo Roberto Garcia and Marciel Gabriela Hines: John J. Thyne III, Lacy L. Taylor, Thyne Taylor Fox Howard, LLP

For Defendants Laura Jean Nary and Kevin Russell Nary: Robert B. Forouzandeh, Riviera Law Group, PC

For Defendant and Cross-Complainant Butterfly Lane Condominiums Homeowners' Association, Inc.: Lisa A. Tashjian, Beaumont Tashjian

For Cross-Complainants Laura Jean Nary and Kevin Russell Nary: Christopher E. Haskell, Emily B. Harrington, Price Postel & Parma LLP

TENTATIVE RULING:

The motion of defendants Laura Jean Nary and Kevin Russell Nary to enforce settlement agreement pursuant to Code of Civil Procedure section 664.6 is granted. Defendants shall prepare a revised order that conforms to the instructions below.

Background:

As alleged in plaintiffs' complaint, plaintiffs Montecristo #1 Living Trust UTD 9/24/2015 and Montecristo #2 Living Trust UTD 9/24/2015 (collectively, plaintiffs or Trusts), whose trustees are Hugo Roberto Garcia and Marciel Gabriela Hines, respectively are co-owners as tenants in common of real property located at 89 Butterfly Lane, in Santa Barbara. (Complaint, ¶¶ 1-2.) Defendants Laura Jean Nary and Kevin Russell Nary (collectively, the Narys) are co-trustees of the Nary Family Trust UTD 3/28/2012, which is the owner of real property located at 87 Butterfly Lane. (Complaint, ¶¶ 3-4.)

The properties located at 87 and 89 Butterfly Lane are two of three units within the Butterfly Lane Condominiums Homeowners' Association (the HOA). (Complaint, ¶ 6.) The third unit within the HOA is the real property located at 85 Butterfly Lane, which is owned by defendant Mary Mooney, as trustee of the Mooney Family Trust UTD 6/4/2010. (Complaint, ¶ 5.) Mary Mooney is the mother of Laura Nary, to whom Mooney has given power of attorney. (Ibid.) Laura Nary serves as President of the HOA. (Complaint, ¶ 3.)

The HOA operates pursuant to a Declaration of Covenants, Conditions, and Restrictions (the CC&R's), which was recorded on January 15, 1985. (Complaint, ¶ 6.) In 2014, the HOA was a defunct corporation. (Complaint, ¶ 17.)

Between 2014 and 2017, the Narys harassed defendants Garcia and Hines about conditions on their property that existed prior to their purchase of their property and that were inconsistent with the condominium plan. (Complaint, ¶ 22.) At the time the Narys and the HOA enforced compliance with that plan against plaintiffs, violations of the condominium plan also existed at 85 and 87 Butterfly Lane. (Complaint, ¶¶ 11-14 & 37.) On June 19, 2017, fed up with the Narys, Garcia and Hines decided to list 89 Butterfly Lane for sale. (Complaint, ¶ 23.)

On July 11, 2017, the Narys filed litigation against the Trusts. (Complaint, ¶ 24.) After filing suit, the Narys contacted the listing agent of 89 Butterfly Lane to interfere with marketing efforts of 89 Butterfly Lane by referencing the lawsuit and demanding it be disclosed to any potential purchasers. (Complaint, ¶ 25.) Plaintiffs had to remove their property from the market due to the Narys' involvement. (Ibid.)

On September 21, 2020, plaintiffs filed their complaint in this action asserting eight causes of action: (1) declaratory relief re disqualification of officer; (2) declaratory relief re improper prohibition of additional dwelling units in CC&R's; (3) interference with prospective economic advantage (as to the Narys only); (4) negligence; (5) trespass; (6) nuisance; (7) breach of

contract; and (8) breach of fiduciary duty.

On November 3, 2020, HOA filed a cross-complaint against Hines, Garcia, and the Trusts.

On November 16, 2020, the Narys and Mooney filed their cross-complaint against Hines, Garcia, and the Trusts.

On November 30, 2020, Hines, Garcia, and the Trusts filed their answer to the HOA cross-complaint.

On February 1, 2021, plaintiffs requested, and the court entered, dismissal without prejudice as to defendant Mooney on plaintiffs' complaint.

On April 12, 2021, the court ordered Santa Barbara Superior Court case number 20CV01647, entitled Kevin Russell Nary, et al. vs. Maricel Gabriela Hines, et al. (the Related Case), related to this case.

On April 13, 2021, the Narys and the HOA filed their answer to plaintiffs' complaint, as it existed after the court sustained an unopposed demurrer of the Narys to the third cause of action of the complaint, and granted an unopposed motion of the Narys to strike portions of the complaint.

On March 22, 2022, with leave pursuant to court order signed on March 21 and entered on March 22, 2022, the HOA filed its operative first amended cross-complaint (the FACC) against Hines, Garcia, and the Trusts.

On April 29, 2022, Hines, Garcia, and the Trusts filed their answer to the FACC.

On May 6 and May 9, 2022, the court entered orders in regard to the terms of a judicially supervised settlement agreement, and retaining jurisdiction over this case and the Related Case.

On January 31, 2023, plaintiffs filed a request for dismissal of the entire action, with prejudice, which was entered as requested by plaintiffs on February 1, 2023.

On December 19, 2025, the Narys filed a motion for an order enforcing a "Settlement Agreement and Mutual Release of All Claims" (the Agreement) pursuant to Code of Civil Procedure section 664.6. On April 13, 2026, the motion was denied without prejudice due to procedural and substantive issues.

On June 24, 2026, the Narys filed a second motion for enforcement of the agreement and entry of judgment pursuant to Code of Civil Procedure section 664.6.

In support of the motion, Laura Nary (L Nary), who has served as a director of the HOA since before the Agreement was executed, declares that on August 10, 2022, the parties entered into a written settlement agreement. (L Nary decl., ¶ 3.) The Agreement is attached to the declaration as Exhibit 1.

L Nary further declares that plaintiff has failed to perform certain obligations imposed by the agreement, including preparation, updating, and submittal of revised architectural and landscaping plans for Unit 89 required for County of Santa Barbara Coastal Development Permit approval and Montecito Board of Architectural Review and approval, despite repeated requests from SEPPS Land Use Consulting. (L Nary decl., ¶ 7.) Plaintiff has also challenged the 50/50 payment split of regular and special assessments levied by the HOA to fund map modification and privacy wall projects mandated by the agreement and has failed to pay his regular monthly assessments of the HOA as required by the agreement.

Although the motion was properly served, there is no opposition, or any other response, to the motion.

Analysis:

"[T]he methods for enforcing a settlement are a motion for summary judgment, a separate suit in equity, an amendment to the pleadings in the settled action or a motion under [Code of Civil Procedure] section 664.6." (Reed v. United Teachers Los Angeles (2012) 208 Cal.App.4th 322, 338.)

"Code of Civil Procedure section 664.6 provides a summary, expedited procedure to enforce settlement agreements." (Sayta v. Chu (2017) 17 Cal.App.5th 960, 962, fn. omitted.) "Even though it is not exclusive, Code of Civil Procedure section 664.6 is intended to provide a means for enforcing an agreement that requires nothing more than a single motion." (In re Marriage of Woolsey (2013) 220 Cal.App.4th 881, 898.) "The entry of a judgment pursuant to section 664.6 enables parties to enforce a settlement agreement without having to file a separate lawsuit." (DeSaulles v. Community Hospital of Monterey Peninsula (2016) 62 Cal.4th 1140, 1155.)

Code of Civil Procedure section 664.6 provides:

"(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

"(b) For purposes of this section, a writing is signed by a party if it is signed by any of the following:

"(1) The party.

"(2) An attorney who represents the party.

"(3) If the party is an insurer, an agent who is authorized in writing by the insurer to sign on the insurer's behalf.

"(c) Paragraphs (2) and (3) of subdivision (b) do not apply in a civil harassment action, an action brought pursuant to the Family Code, an action brought pursuant to the Probate Code, or a matter that is being adjudicated in a juvenile court or a dependency court.

"(d) In addition to any available civil remedies, an attorney who signs a writing on behalf of a party pursuant to subdivision (b) without the party's express authorization shall, absent good cause, be subject to professional discipline."

"A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement." (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182.) "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. [Citation]" (Id. at pp. 1182-1183.)

A court hearing a motion brought under section 664.6 may "receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment", but may not "create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon." (Weddington Productions, Inc. v. Flick (1998) 60

Cal.App.4th 793, 810.)

The Agreement includes the following language: “without admitting any wrongdoing, fault or liability of any kind, the Parties have agreed to resolve all disputes and release any and all claims, whether known or unknown, against each other and to enter into this Agreement.” (L Nary Dec., exhibit 1 at p. 2.) Absent a dispute by Garcia, the present undisputed record is sufficient to show that Garcia, Hines, the Narys, Mooney, and the HOA signed the Agreement on August 12, 2022. (L Nary Dec., exhibit 1 at p. 11.)

The present record is sufficient to show, without dispute, that Garcia expressly consented in writing to a valid, binding settlement that may be enforced against Garcia. (Weddington, supra, 60 Cal.App.4th at p. 810.) The record also reflects that the court retained jurisdiction over the parties to enforce the Agreement until its performance in full.

The court will grant the motion and enter judgment, pursuant to Code of Civil Procedure section 664.6, in conformity with the Agreement.

Proposed Judgment

The Narys have submitted a proposed judgment that indicates: “Judgment is entered pursuant to Code of Civil Procedure section 664.6, incorporating the Settlement Agreement and Mutual Release of All Claims, effective August 10, 2022, in its entirety, without omission or modification, which is attached as Exhibit A.” While the language of that section is acceptable, the Agreement is not attached to the Judgment. The Narys shall provide a new Judgment that attaches the Agreement.

Further, paragraphs 2 and 3 are to be modified to reflect that any attorney fees or costs are to be determined by post-judgment motion.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US